

CHAPTER 48

Matrimonial Proceedings (Magistrates' Courts) Act, 1960

ARRANGEMENT OF SECTIONS

Section

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An Act to amend and consolidate certain enactments relating to matrimonial proceedings in magistrates' courts and to make in the case of other proceedings the same amendments as to the maximum weekly rate of the maintenance payments which may be ordered by a magistrates' court as are made in the case of matrimonial proceedings. [29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) A married woman or a married man may apply by way of complaint to a magistrates' court for an order under this Act against the other party to the marriage on any of the following causes of complaint arising during the subsistence of the marriage, that is to say, that the defendant—

- (a) has deserted the complainant ; or
- (b) has been guilty of persistent cruelty to—
 - (i) the complainant ; or
 - (ii) an infant child of the complainant ; or
 - (iii) an infant child of the defendant who, at the time of the cruelty, was a child of the family ; or
- (c) has been found guilty—
 - (i) on indictment, of any offence which involved an assault upon the complainant ; or

(ii) by a magistrates' court, of an offence against the complainant under section twenty, forty-two, forty-three or forty-seven of the Offences against the Person Act, 1861, being, in the case of the said section forty-two, an offence for which the defendant has been sentenced to imprisonment or any other form of detention for a term of not less than one month ; or

(iii) of, or of an attempt to commit, an offence under any of sections one to twenty-nine of the Sexual Offences Act, 1956, or under section one of the Indecency with Children Act, 1960, against an infant child of the complainant, or against an infant child of the defendant who, at the time of the commission of or attempt to commit the offence, was a child of the family ; or

(d) has committed adultery ; or

(e) while knowingly suffering from a venereal disease has insisted on, or has without the complainant being aware of the presence of that disease permitted, sexual intercourse between the complainant and the defendant ; or

(f) is for the time being an habitual drunkard or a drug addict ; or

(g) being the husband, has compelled the wife to submit herself to prostitution or has been guilty of such conduct as was likely to result and has resulted in the wife's submitting herself to prostitution ; or

(h) being the husband, has wilfully neglected to provide reasonable maintenance for the wife or for any child of the family who is, or would but for that neglect have been, a dependant ; or

(i) being the wife, has wilfully neglected to provide, or to make a proper contribution towards, reasonable maintenance for the husband or for any child of the family who is, or would but for that neglect have been, a dependant, in a case where, by reason of the impairment of the husband's earning capacity through age, illness, or disability of mind or body, and having regard to any resources of the husband and the wife respectively which are, or should properly be made, available for the purpose, it is reasonable in all the circumstances to expect the wife so to provide or contribute.

(2) A magistrates' court shall have jurisdiction to hear a complaint under this section—

(a) if at the date of the making of the complaint either the complainant or the defendant ordinarily resides

within the petty sessions area for which that court acts ;
or

- (b) except in the case of a complaint by virtue of paragraph (c) of the foregoing subsection, if the cause of complaint arose wholly or partly within the said petty sessions area ; or
- (c) in the case of a complaint by virtue of the said paragraph (c), if the offence or attempt to which the complaint relates occurred within the said petty sessions area.

(3) The jurisdiction conferred by the last foregoing subsection—

- (a) shall be exercisable notwithstanding that the defendant resides in Scotland or Northern Ireland if the complainant resides in England and the parties last ordinarily resided together as man and wife in England ; and
- (b) is hereby declared to be exercisable where the complainant resides in Scotland or Northern Ireland if the defendant resides in England :

Provided that nothing in this subsection shall be construed as enabling a court to include in an order under this Act against a person residing in Scotland or Northern Ireland a provision such as is mentioned in paragraph (a) of subsection (1) of section two of this Act.

2.—(1) Subject to the proviso to subsection (3) of section one of this Act and to the provisions of this section and of section four of this Act, on hearing a complaint under the said section one by either of the parties to a marriage the court may make an order (in this Act referred to as a “matrimonial order”) containing any one or more of the following provisions, namely—

Order by magistrates' court in matrimonial proceedings.

- (a) a provision that the complainant be no longer bound to cohabit with the defendant (which provision while in force shall have effect in all respects as a decree of judicial separation) ;
- (b) a provision that the husband shall pay to the wife such weekly sum not exceeding seven pounds ten shillings as the court considers reasonable in all the circumstances of the case ;
- (c) where, by reason of the impairment of the husband's earning capacity through age, illness, or disability of mind or body, it appears to the court reasonable in all the circumstances so to order, a provision that the wife shall pay to the husband such weekly sum not exceeding seven pounds ten shillings as the court considers reasonable in all the circumstances of the case ;

- (d) a provision for the legal custody of any child of the family who is under the age of sixteen years ;
- (e) if it appears to the court that there are exceptional circumstances making it impracticable or undesirable for any such child as aforesaid to be entrusted to either of the parties or to any other individual, a provision committing the care of the child to a specified local authority, being the council of the county or county borough in which the child was, in the opinion of the court, resident immediately before being so committed ;
- (f) if, in the case of any child committed by the order to the legal custody of any person, it appears to the court that there are exceptional circumstances making it desirable that the child should be under the supervision of an independent person, a provision that the child be under the supervision—
 - (i) of a probation officer appointed for or assigned to the petty sessions area in which in the opinion of the court the child is or will be resident ; or
 - (ii) of a specified local authority, being the council of a county or county borough ;
- (g) a provision for access to any child of the family by either of the parties or by any other person who is a parent of that child, in a case where the child is committed by the order to the legal custody of a person other than that party or parent ;
- (h) a provision for the making by the defendant or by the complainant or by each of them, for the maintenance of any child of the family, of payments by way of a weekly sum not exceeding in the case of payments by either one of the parties in respect of any one child the sum of fifty shillings, being—
 - (i) if and for so long as the child is under the age of sixteen years, payments to any person to whom the legal custody of the child is for the time being committed by the order, or by any other order made by a court in England and for the time being in force, or, during any period when the child is in the care of a local authority under the order, to that local authority ;
 - (ii) if it appears to the court that the child is, or will be, or if such payments were made would be, a dependant though over the age of sixteen years, and that it is expedient that such payments should be made in respect of that child while such a dependant, payments to such person (who may be the child or,

during any such period as aforesaid, the local authority) as may be specified in the order, for such period during which the child is over that age but under the age of twenty-one years as may be so specified.

(2) Where, on a complaint under section one of this Act, the court makes a matrimonial order on the ground that the defendant is for the time being an habitual drunkard or a drug addict, and the order contains such a provision as is mentioned in paragraph (a) of the foregoing subsection, then, if in all the circumstances, and after giving each party to the proceedings an opportunity of making representations, the court thinks it proper so to do, the court may include in that order—

(a) if the complainant is the husband, a provision such as is mentioned in paragraph (b) of the foregoing subsection ;
or

(b) if the complainant is the wife, a provision such as is mentioned in paragraph (c) of that subsection ;

but save as aforesaid the said paragraph (b) or (c) shall not authorise the court to require any payment such as is therein mentioned to be made by the complainant.

(3) The court hearing a complaint under section one of this Act shall not make a matrimonial order containing a provision such as is mentioned in paragraph (a), (b) or (c) of subsection (1) of this section—

(a) on the ground that the defendant has committed an act of adultery, unless the court is satisfied that the complainant has not condoned or connived at, or by wilful neglect or misconduct conduced to, that act of adultery ; or

(b) where the complainant is proved to have committed an act of adultery during the subsistence of the marriage, unless the court is satisfied that the defendant has condoned or connived at, or by wilful neglect or misconduct conduced to, that act of adultery.

(4) The court shall not make an order containing—

(a) such a provision as is mentioned in paragraph (d) or (e) of subsection (1) of this section in respect of any child with respect to whose custody an order made by a court in England is for the time being in force ;

(b) such a provision as is mentioned in paragraph (e), (f) or (g) of the said subsection (1) in respect of any child who is already for the purposes of Part II of the Children Act, 1948, in the care of a local authority ;

(c) such a provision as is mentioned in the said paragraph (f) or (g) in respect of any child in respect of whom the order contains such a provision as is mentioned in the said paragraph (e).

(5) In considering whether any, and if so what, provision should be included in a matrimonial order by virtue of paragraph (h) of subsection (1) of this section for payments by one of the parties in respect of a child who is not a child of that party, the court shall have regard to the extent, if any, to which that party had, on or after the acceptance of the child as one of the family, assumed responsibility for the child's maintenance, and to the liability of any person other than a party to the marriage to maintain the child.

Supplementary provisions with respect to order for care or supervision of child.

3.—(1) Before including in a matrimonial order a provision committing a child to the care of a local authority, the court shall inform the authority of their proposal so to do and hear any representations from the authority, including any representations as to the inclusion in the order by virtue of paragraph (h) of subsection (1) of section two of this Act of provision for payments to the authority.

(2) Upon the inclusion in a matrimonial order of a provision committing a child as aforesaid—

(a) Part II of the Children Act, 1948 (which relates to the treatment of children in the care of a local authority) except section seventeen thereof (which relates to arrangements for the emigration of such children): and

(b) for the purposes only of contributions by the child himself at a time when he has attained the age of sixteen and is engaged in remunerative full-time work, Part III of that Act (which relates to contributions towards the maintenance of children in the care of a local authority),

shall apply as if the child had been received by the local authority into their care under section one of that Act.

(3) While such a provision as aforesaid remains in force with respect to any child, the child shall continue in the care of the local authority notwithstanding any claim by a parent or other person.

(4) Any such provision as aforesaid shall cease to have effect as respects any child when the child attains the age of eighteen years.

(5) Each parent or guardian of any child for the time being in the care of a local authority under a matrimonial order shall give notice to the authority of any change of address of that parent or guardian, and any person who without reasonable excuse fails to comply with this subsection shall be liable on summary conviction to a fine not exceeding five pounds.

(6) Where a matrimonial order provides for a child to be under the supervision of a probation officer, that officer shall be selected in like manner as if the order were a probation order.

(7) Where a matrimonial order provides for a child to be under the supervision of a local authority, the functions of the authority under that order shall be deemed to be included among the functions specified in subsection (1) of section thirty-nine of the Children Act, 1948 (being the functions for the purposes of which a local authority are required to establish a children's committee), and any duties falling to be discharged by the authority by virtue of the order shall be discharged through an officer of the authority employed in connection with functions specified as aforesaid.

(8) For the purposes of any matrimonial order providing for a child to be under the supervision of a probation officer or of a local authority, without prejudice to section eight of this Act, provision may be made by rules for substituting from time to time a probation officer appointed for or assigned to a different petty sessions area, or, as the case may be, a different local authority, if in the opinion of the court the child is or will be resident in that petty sessions area or, as the case may be, in the area of that authority.

(9) Any provision of a matrimonial order that a child be under the supervision of a probation officer or local authority shall cease to have effect as respects any child when the child attains the age of sixteen years.

4.—(1) Where the court has begun to hear a complaint—

(a) under section one of this Act ; or

(b) for the variation of a matrimonial order—

(i) by the revocation, addition or alteration of provision for the legal custody of a child ; or

(ii) by the revocation of a provision committing a child to the care of a local authority or a provision that a child be under the supervision of a probation officer or local authority ; or

(c) for the revocation of a matrimonial order consisting of or including any such provision as aforesaid,

then, whether or not the court makes the order for which the complaint is made, but subject to subsections (4) and (5) of section two of this Act and subsection (6) of this section, the court may make a matrimonial order containing, or, as the case may be, vary the matrimonial order so that it contains, any provision such as is mentioned in paragraphs (d) to (h) of subsection (1) of the said section two which, after giving each party to the proceedings an opportunity of making representations, the court thinks proper in all the circumstances ; and the court shall not dismiss or make its final order on any complaint in a case where the powers conferred on the court by this subsection are or may be exercisable until it has decided whether or not, and if so how, those powers should be exercised.

**Special
powers and
duties with
respect to
children.**

(2) Where, on hearing such a complaint as aforesaid or a complaint for the variation of a matrimonial order by the revocation, addition or alteration of provision for access to a child, the court, after it has made any decision which falls to be made on the complaint with respect to any provision such as is mentioned in paragraphs (a) to (c) of subsection (1) of section two of this Act, is of the opinion that it has not sufficient information to make the decision required by the foregoing subsection or, as the case may be, to make a decision as to access to the child, the court may call for a report, either oral or in writing, by a probation officer, or by such an officer of a local authority as is mentioned in subsection (7) of section three of this Act, with respect to such matters as the court may specify, being matters appearing to the court to be relevant to that decision.

(3) Any statement which is or purports to be a report in pursuance of the last foregoing subsection shall be made, or if in writing be read aloud, before the court at a hearing of the complaint, and immediately after it has been so made or read aloud the court shall ask whether any party to the proceedings who is present or represented by counsel or solicitor at the hearing objects to anything contained therein; and where objection is made—

- (a) the court shall require the officer by whom the statement was or purported to be made to give evidence on oath with respect to the matters referred to therein; and
- (b) any party to the proceedings may give or call evidence with respect to any matter referred to in the statement or in any evidence given by the officer.

(4) Subject to the next following subsection, the court may take account of any statement made or read aloud under the last foregoing subsection and of any evidence given under paragraph (a) of that subsection, so far as that statement or evidence relates to the matters specified by the court under subsection (2) of this section, notwithstanding any enactment or rule of law relating to the admissibility of evidence.

(5) A report in pursuance of subsection (2) of this section shall not include anything said by either of the parties to a marriage in the course of an interview which took place with, or in the presence of, a probation officer with a view to the reconciliation of those parties, unless both parties have consented to its inclusion; and if anything so said is included without the consent of both those parties as part of any statement made or read aloud under subsection (3) of this section, then, unless both those parties agree otherwise, that part of the statement shall, for the purposes of the giving of evidence under the said subsection (3) and for the purposes of subsection (4) of this section, be deemed not to be contained in the statement.

(6) On the hearing of a complaint under section one of this Act in the case of which there is a child of the family who is

not a child of both the parties, other than a child with respect to whose custody an order made by a court in England is for the time being in force—

- (a) subsections (1) and (3) of this section shall have effect as if any person who, though not a party to the proceedings, is a parent of that child and who is present or represented by counsel or solicitor at the hearing were a party to the proceedings ; and
- (b) if any such person is not so present or represented, the court shall not make a matrimonial order on the complaint unless it is proved to the satisfaction of the court, on oath or in such other manner as may be prescribed by rules, that such steps have been taken as may be so prescribed with a view to giving notice to that person of the making of the complaint and of the time and place appointed for the hearing:

Provided that nothing in paragraph (b) of this subsection shall require notice to be given to any person as the father of an illegitimate child unless that person has been adjudged by a court to be the father of that child.

(7) Where for the purposes of this section the court adjourns the hearing of any complaint, then, subject to subsection (2) of section forty-six of the *Magistrates' Courts* Act, 1952 (which requires adequate notice of the time and place of the resumption of the hearing to be given to the parties), the court may resume the hearing at the time and place appointed notwithstanding the absence of both or all of the parties.

(8) In any proceedings in which the powers conferred on the court by subsection (1) of this section are or may be exercisable, the question whether or not, and if so how, those powers should be exercised shall be excepted from the issues arising in the proceedings which, under the proviso to subsection (1) of section sixty of the *Magistrates' Courts* Act, 1952, must be determined by the court before the court may direct a probation officer to make to the court under that section a report on the means of the parties.

5. Where on hearing any complaint under section one of this Act a magistrates' court is of the opinion that any of the matters in question between the parties would be more conveniently dealt with by the High Court, the magistrates' court may refuse to make a matrimonial order on the complaint, and no appeal shall lie from that refusal ; but if in any proceedings in the High Court relating to or comprising the same subject matter as that complaint the High Court so orders, the complaint shall be re-heard and determined by a magistrates' court acting for the same petty sessions area as the first-mentioned court.

Refusal of order in case more suitable for High Court.

Interim
order by
magistrates
court or
High Court.

6.—(1) Where in the case of any complaint made to a magistrates' court under section one of this Act—

- (a) the magistrates' court, at any time before making its final order on the complaint, adjourns the hearing of the complaint for any period exceeding one week ; or
- (b) the magistrates' court refuses by virtue of section five of this Act to make a matrimonial order on the complaint ; or
- (c) after such a refusal by the magistrates' court as aforesaid, or on an appeal under section eleven of this Act from, or from the refusal of, a matrimonial order on the complaint, the High Court by virtue of the said section five or eleven orders that the complaint shall be re-heard by a magistrates' court,

then, in a case falling within paragraph (a) or (b) of this subsection the magistrates' court, or in a case falling within paragraph (c) thereof the High Court, may make an order under this section (in this Act referred to as an "interim order").

(2) An interim order may contain—

- (a) any such provision as is mentioned in paragraph (b), (c) or (h) of subsection (1) of section two of this Act ; and
- (b) where by reason of special circumstances the court thinks it proper, but subject to subsection (4) of the said section two, any provision such as is mentioned in paragraph (d) or (g) of that subsection ;

and for the purposes of paragraph (a) of this subsection the reference in sub-paragraph (i) of the said paragraph (h) to any person to whom the legal custody of a child is for the time being committed by an order shall be construed as including a reference to any person, being one of the parties or a parent of the child, who for the time being has the care of the child ; and an appeal against an interim order shall not lie if the appeal relates only to such a provision of the order as is mentioned in paragraph (a) of this subsection.

(3) Without prejudice to sections seven, eight and eleven of this Act, an interim order in connection with any complaint shall cease to be in force on whichever of the following dates occurs first, that is to say—

- (a) the date, if any, specified for the purpose in the interim order ;
- (b) the date of the expiration of the period of three months beginning with the date of—
 - (i) the making of the interim order ; or

(ii) if the interim order is one of two or more such orders made with respect to the same complaint by virtue of the same paragraph of subsection (1) of this section, the making of the first of those interim orders;

(c) the date of the making of a final order on, or the dismissal of, the complaint by a magistrates' court.

(4) An interim order made by the High Court under this section on ordering that a complaint be re-heard by a magistrates' court shall, for the purposes of its enforcement and for the purposes of section eight of this Act, be treated as if it were an order of that magistrates' court and not of the High Court.

(5) The powers conferred on the High Court by this section shall be without prejudice to the powers of that court on an appeal under section eleven of this Act from the refusal of an interim order by a magistrates' court.

7.—(1) Where a matrimonial or interim order is made while the parties to the marriage in question are cohabiting— Suspension
or cessation
of orders.

- (a) the order shall not be enforceable and no liability shall accrue thereunder until they have ceased to cohabit; and
- (b) if in the case of a matrimonial order they continue to cohabit for the period of three months beginning with the date of the making of the order, the order shall cease to have effect at the expiration of that period:

Provided that, unless the court in making the order directs otherwise, this subsection shall not apply to any provision of the order—

- (i) committing a child to the legal custody of a person other than one of the parties, or for access to that child by either of the parties or by any other person who is a parent of the child; or
- (ii) committing a child to the care of a local authority or providing for a child to be under the supervision of a probation officer or local authority; or
- (iii) for the making by either or each of the parties to a person other than one of the parties of payments for the maintenance of a child.

(2) Without prejudice to section eight of this Act, any provision of a matrimonial or interim order other than such a provision as is referred to in the proviso to the foregoing subsection shall cease to have effect upon the parties to the marriage in question resuming cohabitation.

(3) Where after the making by a magistrates' court of—

- (a) a matrimonial order consisting of or including a provision such as is mentioned in paragraph (b), (c) or (h) of subsection (1) of section two of this Act ; or
- (b) an interim order,

proceedings between, and relating to the marriage of, the parties to the proceedings in which that order was made have been commenced in the High Court, the High Court may, if it thinks fit, direct that the said provision or, as the case may be, the interim order shall cease to have effect on such date as the High Court may specify.

Revocation,
revival and
variation of
orders.

8.—(1) Subject to section four of this Act, section fifty-three of the Magistrates' Courts Act, 1952 (which provides for the revocation, revival or variation, by order on complaint, of an order of a magistrates' court for the periodical payment of money) and the proviso to subsection (1) of section fifty-five of that Act (which relates to costs on the hearing of such a complaint) shall apply for the purpose of the revocation, revival or variation of any matrimonial or interim order as if that order were an order for the periodical payment of money, whether or not it is in fact such an order ; and a complaint for the said purpose may be heard whatever the time at which it is made ; and for the avoidance of doubt it is hereby declared that for the purposes of this Act the expression "variation" in relation to any order includes the addition to that order of any provision authorised by this Act to be included in such an order :

Provided that, without prejudice to the powers and duties of the court under section four of this Act, nothing in this section shall authorise the making of a complaint—

- (a) for the variation of an order by the addition of a provision committing a child to the care of a local authority or providing for a child to be under the supervision of a probation officer or local authority ; or
- (b) for the revival of any such provision as aforesaid which has ceased to be in force ; or
- (c) for the variation of a provision committing a child to the care of a local authority.

(2) Where on a complaint for the revocation of a matrimonial order it is proved that the parties to the marriage in question have resumed cohabitation or that the party on whose complaint the order was made has during the subsistence of the marriage committed an act of adultery, the court shall revoke the order :

Provided that—

- (a) the court shall not be bound by reason of such a resumption of cohabitation to revoke any provision of

the order such as is mentioned in the proviso to subsection (1) of section seven of this Act ;

- (b) the court shall not revoke the order by reason of such an act of adultery as aforesaid—

(i) except at the request of the person who was the defendant to the proceedings in which the order was made ; or

(ii) if the court is of the opinion that the person aforesaid has condoned or connived at, or by wilful neglect or misconduct conducted to, that act of adultery,

and shall not be bound by reason of that act of adultery to revoke any provision of the order included therein by virtue of paragraphs (d) to (h) of subsection (1) of section two of this Act.

(3) The court before which there fall to be heard any proceedings for the variation of a provision for the payment of money contained in a matrimonial or interim order may, if it thinks fit, order that those proceedings and any other proceedings being heard therewith shall be treated for the purposes of the Magistrates' Courts Act, 1952, as domestic proceedings ; and that Act shall thereupon have effect accordingly notwithstanding anything in subsection (1) of section fifty-six thereof ; and no appeal shall lie from, or from the refusal of, an order under this subsection.

9.—(1) It is hereby declared that any jurisdiction conferred on a court by virtue of section eight of this Act is exercisable notwithstanding that the proceedings are brought by or against a person residing outside England :

Complaint for variation, etc., by or against person outside England.

Provided that a matrimonial order shall not be varied by the addition of such a provision as is mentioned in paragraph (a) of subsection (1) of section two of this Act if the defendant to the complaint for the variation resides outside England.

(2) Where, at the time and place appointed for the hearing of a complaint by virtue of section eight of this Act, the defendant does not appear but—

- (a) the court is satisfied that there is reason to believe that the defendant has been outside the United Kingdom during the whole of the period beginning one month before the making of the complaint and ending with the date of the hearing ; and

- (b) it is proved to the satisfaction of the court, on oath, or in such other manner as may be prescribed by rules,

that such steps have been taken as may be so prescribed with a view to giving notice to the defendant of the making of the complaint and of the time and place aforesaid,

the court may, if it thinks it reasonable in all the circumstances so to do, proceed to hear and determine the complaint at the time and place appointed for the hearing or for any adjourned hearing in like manner as if the defendant had appeared at that time and place.

(3) Where a complaint for the revocation or variation of any provision for the making of payments by the complainant to the defendant is heard by virtue of subsection (2) of this section in the absence of the defendant, and the court is satisfied that there is reason to believe that during the period of six months immediately preceding the making of the complaint the defendant was continuously outside the United Kingdom or was not in the United Kingdom on more than thirty days, then, if in all the circumstances, and having regard to any communication to the court in writing purporting to be from the defendant, the court thinks it reasonable so to do, the court may make the order for which the complaint is made or make such variation in that provision by way of reducing the amount of the payments as the court thinks fit.

(4) For the purposes of the hearing by virtue of subsection (2) of this section, in the absence of the defendant, of a complaint for the revocation or variation of a matrimonial order under which payments fall to be made by the complainant to the defendant through the clerk of a magistrates' court, a certificate in writing by that clerk dated not earlier than ten days before the date of the hearing and stating that, during the period mentioned in paragraph (a) of subsection (2) of this section (or so much thereof as precedes the date of the certificate) or, as the case may be, during the period mentioned in subsection (3) of this section—

- (a) every payment made under the order has been forwarded by the clerk to an address outside the United Kingdom ; and
- (b) the defendant has not to the knowledge of the clerk been in the United Kingdom at any time or, in the case of the period mentioned in the said subsection (3), on more than thirty days,

shall be sufficient evidence that there is reason to believe as mentioned in paragraph (a) of the said subsection (2) or, as the case may be, in the said subsection (3).

(5) Nothing in this section shall be construed as authorising the making of an order by virtue of section eight of this Act against a person residing outside England for the inclusion in

a matrimonial or interim order of any provision requiring payments to be made by that person exceeding in amount those, if any, required to be made by him under the order sought to be varied, unless the order by virtue of the said section eight is made at a hearing at which either that person appears or the requirements of subsection (3) of section forty-seven of the *Magistrates' Courts Act, 1952*, with respect to proof of service of summons or appearance on a previous occasion are satisfied in respect of that person.

10.—(1) A complaint by virtue of section eight of this Act for the revocation, revival or variation of a matrimonial or interim order may be made in the following cases by the following persons in addition to the parties to the marriage in question, that is to say—

Parties to
complaint for
variation,
etc.

- (a) where a child of the family is not a child of both the parties to the marriage, a complaint relating to any provision with respect to the child such as is mentioned in paragraph (d) or (g) of subsection (1) of section two of this Act may be made by any person who, though not one of the parties to the marriage, is a parent of the child ;
- (b) a complaint relating to payments under the order such as are mentioned in paragraph (h) of the said subsection (1) may be made by any person to whom such payments fall, or upon the making of the order for which the complaint is made would fall, to be made ;
- (c) where under the order a child is for the time being committed to the legal custody of some person other than one of the parents or to the care of a local authority, a complaint relating to any provision with respect to the child such as is mentioned in the said paragraph (d) or (g) may be made by any person to whose legal custody the child is committed by the order or who seeks the legal custody of the child by the complaint ;
- (d) where under the order a child is for the time being under the supervision of a probation officer or local authority, the probation officer or local authority may make a complaint relating to any provision with respect to the child such as is mentioned in the said paragraphs (d), (g) and (h) ;
- (e) a complaint for the revocation of a provision of the order committing a child to the care of a local authority may be made by that local authority or by any person to whose legal custody the child is for the time being committed by the order or who by the same complaint also seeks the legal custody of the child ;

- (f) a complaint for the variation or revocation of a provision of the order that a child be under the supervision of a probation officer or local authority may be made by that probation officer or local authority, or by any person to whose legal custody the child is for the time being committed by the order or who by the same complaint also seeks the legal custody of the child.

(2) Provision may be made by rules as to what persons shall be made defendants to any such complaint as aforesaid; and where in the case of any such complaint there are two or more defendants, the powers of the court under subsection (1) of section fifty-five of the Magistrates' Courts Act, 1952, shall be deemed to include power, whatever adjudication the court makes on the complaint, to order any of the parties to pay the whole or part of the costs of all or any of the other parties.

Appeals.

11.—(1) Subject to section five, subsection (2) of section six and subsection (3) of section eight of this Act, an appeal shall lie to the High Court from, and from the refusal or revocation of, or a refusal to revoke, a matrimonial or interim order by a magistrates' court.

(2) Subject to subsection (3) of this section, any order of the High Court on an appeal under this section shall for the purposes of the enforcement of the order and for the purposes of section eight of this Act be treated as if it were an order of the magistrates' court from which the appeal was brought and not of the High Court.

(3) The last foregoing subsection shall not apply to an order directing that a complaint shall be re-heard by a magistrates' court or, without prejudice to the provisions of subsection (4) of section six of this Act, to an order to which the said subsection (4) applies.

Time limit for complaint on ground of adultery.

12.—(1) A complaint under section one of this Act on the ground of the commission of an act of adultery by the defendant may be heard if it is made within six months of the date when that act of adultery first became known to the complainant.

(2) Such a complaint as aforesaid shall not be dismissed by reason only that it was not made within the six months allowed by the foregoing subsection if the court is satisfied that the complainant—

- (a) during the said six months or any part thereof was serving outside the United Kingdom in Her Majesty's forces, or as the master or a member of the crew of a British ship or of a ship for the time being chartered on behalf of Her Majesty; and

- (b) on the date of the making of the complaint, had not been in the United Kingdom for a continuous period of three months since the date of his return to the United Kingdom after the expiration of the said six months or, if he was in the United Kingdom at the expiration of those six months, the date of his last return to the United Kingdom during those six months.

(3) For the purposes of the last foregoing subsection—

- (a) a certificate purporting to be signed by an officer designated for the purpose by the Admiralty, Army Council or Air Council that the complainant during any period or periods was serving outside the United Kingdom in Her Majesty's naval, military or air forces, as the case may be; and
- (b) a certificate purporting to be signed by a person designated for the purpose by the Minister of Transport that the complainant during any period or periods was serving outside the United Kingdom as the master or a member of the crew of a British ship or of a ship for the time being chartered on behalf of Her Majesty,

shall be evidence of the facts so certified and that the complainant was not in the United Kingdom during any such period or periods.

13.—(1) The payment of any sum of money directed to be **Enforcement,** paid by an order made by virtue of this Act may be enforced etc. in the same manner as the payment of money is enforced under an affiliation order.

(2) Without prejudice to section fifty-two of the Magistrates' Courts Act, 1952 (which relates to the power of the court to direct payments to be made through the clerk of a magistrates' court), the court making an order by virtue of this Act for payment of a periodical sum by one person to another may direct that it shall be paid to some third party on that other person's behalf instead of directly to that other person; and, for the purposes of any order made by virtue of this Act, the said section fifty-two shall have effect as if, in subsection (2) thereof, for the words "the applicant for the order" in the first place where those words occur there were substituted the words "the person to whom the payments under the order fall to be made".

(3) Where an order made by virtue of this Act contains a provision committing a child to the legal custody of any person, or to the care of a local authority, a copy of the order may be served on any other person in whose actual custody the child for the time being is; and thereupon that provision may, without prejudice to any other remedy which may be available, be enforced under subsection (3) of section fifty-four of the Magistrates' Courts Act, 1952, as if it were an order of the court

requiring that other person to give up the child to the person to whom the legal custody of the child is committed or, as the case may be, to the local authority.

(4) Any person for the time being under an obligation to make payments under any order made in proceedings brought by virtue of this Act shall give notice to such persons, if any, as may be specified in the order of any change of address; and any person who without reasonable excuse fails to comply with this subsection shall be liable on summary conviction to a fine not exceeding five pounds.

Parties
resident or
domiciled
outside
England.

14.—(1) Section fifteen of the Maintenance Orders Act, 1950 (which relates to the service of process on a person residing in Scotland or Northern Ireland) shall have effect as if subsection (3) of section one and subsection (1) of section nine of this Act were included in Part I of that Act.

(2) Nothing in either of the said subsections shall be construed as derogating from any jurisdiction exercisable by any court apart from the provisions of those subsections.

(3) It is hereby declared that any jurisdiction conferred on a magistrates' court by this Act is exercisable notwithstanding that any party to the proceedings is not domiciled in England.

Increase of
maintenance
payments
which may
be ordered
under other
Acts.

15. The enactments hereinafter mentioned (which prescribe maximum weekly rates for certain maintenance payments which may be ordered by a magistrates' court) shall be amended as follows, that is to say—

(a) in paragraph (c) of the proviso to subsection (1) of section seven of the Guardianship of Infants Act, 1925, as amended by the Guardianship and Maintenance of Infants Act, 1951, and in paragraph (a) of subsection (2) of section four of the Affiliation Proceedings Act, 1957, for the words "thirty shillings" there shall be substituted the words "fifty shillings";

(b) in subsection (3) of section four of the Maintenance Orders Act, 1958, for the words "five pounds" there shall be substituted the words "seven pounds ten shillings" and for the words "thirty shillings" there shall be substituted the words "fifty shillings".

Interpretation.

16.—(1) In this Act, save where the context otherwise requires, the following expressions have the following meanings respectively, that is to say—

"child", in relation to one or both of the parties to a marriage, includes an illegitimate or adopted child of that party or, as the case may be, of both parties, but does not include a child adopted by some other person or persons, and "parent", in relation to any child,

shall be construed accordingly ; and " adopted " means adopted in pursuance of an adoption order made under the Adoption Act, 1958, or any enactment repealed by that Act or by the Adoption Act, 1950, or under any corresponding enactment of the Parliament of Northern Ireland ;

" child of the family ", in relation to the parties to a marriage, means—

(a) any child of both parties ; and

(b) any other child of either party who has been accepted as one of the family by the other party ;

" dependant " means a person—

(a) who is under the age of sixteen years ; or

(b) who, having attained the age of sixteen but not of twenty-one years, is either receiving full-time instruction at an educational establishment or undergoing training for a trade, profession or vocation in such circumstances that he is required to devote the whole of his time to that training for a period of not less than two years ; or

(c) whose earning capacity is impaired through illness or disability of mind or body and who has not attained the age of twenty-one years ;

" drug addict " means a person (not being a mentally disordered person within the meaning of the Mental Health Act, 1959) who, by reason of the habitual taking or using, otherwise than upon medical advice, of any drug to which any of the provisions of the Dangerous Drugs Act, 1951, for the time being applies—

(a) is at times dangerous to himself or to others, or incapable of managing himself or his affairs ; or

(b) so conducts himself that it would not be reasonable to expect a spouse of ordinary sensibilities to continue to cohabit with him ;

" habitual drunkard " means a person (not being a mentally disordered person within the meaning of the Mental Health Act, 1959) who, by reason of habitual intemperate drinking of intoxicating liquor—

(a) is at times dangerous to himself or to others, or incapable of managing himself or his affairs ; or

(b) so conducts himself that it would not be reasonable to expect a spouse of ordinary sensibilities to continue to cohabit with him ;

" interim order " means an order under section six of this Act and includes any order made by virtue of section

eight of this Act varying or reviving an order under the said section six ;

"matrimonial order" means an order under section two of this Act and includes any order made by virtue of section eight of this Act varying or reviving an order under the said section two ;

"petty sessions area" has the same meaning as in the *Magistrates' Courts Act, 1952* ;

"rules" means rules made under section fifteen of the *Justices of the Peace Act, 1949*.

(2) Save where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by or under any subsequent enactment, including this Act.

Expenses.

17. There shall be defrayed out of moneys provided by Parliament any increase attributable to this Act in the sums payable out of moneys so provided under any other enactment.

Repeals and savings.

18.—(1) The enactments specified in the second column of the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule :

Provided that the repeal by this subsection of section five of the *Maintenance Orders Act, 1950*, shall not affect the validity of any rules made by virtue of that section.

(2) Any application, complaint or order made, or other thing done, under or by virtue of any of the enactments repealed by this Act shall, so far as pending or in force immediately before the commencement of this Act, continue to have effect as if made or done under or by virtue of the corresponding enactment in this Act ; and anything begun under any of the said enactments may be continued under this Act as if begun under this Act.

(3) So much of any enactment or document as refers expressly or by implication to any enactment repealed by this Act shall, if and so far as the context permits, be construed as referring to this Act or the corresponding enactment therein.

(4) Nothing in this section shall be taken as affecting the general application of section thirty-eight of the *Interpretation Act, 1889*, with regard to the effect of repeals.

Short title, extent and commencement.

19.—(1) This Act may be cited as the *Matrimonial Proceedings (Magistrates' Courts) Act, 1960*.

(2) This Act, except for subsection (1) of section fourteen and the repeal of sections one and five of the *Maintenance Orders Act, 1950*, shall not extend to Scotland or to Northern Ireland.

(3) This Act shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
58 & 59 Vict. c. 39.	The Summary Jurisdiction (Married Women) Act, 1895.	The whole Act.
2 Edw. 7. c. 28	The Licensing Act, 1902 ...	Section five.
10 & 11 Geo. 5. c. 63.	The Married Women (Maintenance) Act, 1920.	The whole Act.
15 & 16 Geo. 5. c. 51.	The Summary Jurisdiction (Separation and Maintenance) Act, 1925.	The whole Act.
25 & 26 Geo. 5. c. 46.	The Money Payments (Justices Procedure) Act, 1935.	Section nine.
1 Edw. 8 & 1 Geo. 6. c. 57.	The Matrimonial Causes Act, 1937.	Section eleven.
12, 13 & 14 Geo. 6. c. 99.	The Married Women (Maintenance) Act, 1949.	The whole Act.
14 Geo. 6. c. 37	The Maintenance Orders Act, 1950.	Sections one and five.
14 & 15 Geo. 6. c. 56.	The Guardianship and Maintenance of Infants Act, 1951.	In section one, subsection (3) from "but" onwards. Section two. In section four, in subsection (2), the words from "and any order" to "this Act" where next thereafter occurring.
15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.	The Magistrates' Courts Act, 1952.	In section fifty-two, the proviso to subsection (2). In section one hundred and twenty-six, in subsection (1), the paragraph commencing with the words "Maintenance order".
1 & 2 Eliz. 2. c. 47.	The Emergency Laws (Miscellaneous Provisions) Act, 1953.	In the First Schedule, paragraph 3.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Offences against the Person Act, 1861	24 & 25 Vict. c. 100.
Interpretation Act, 1889... ..	52 & 53 Vict. c. 63.
Guardianship of Infants Act, 1925	15 & 16 Geo. 5. c. 45.
Children Act, 1948	11 & 12 Geo. 6. c. 43.
Justices of the Peace Act, 1949... ..	12, 13 & 14 Geo. 6. c. 101.
Adoption Act, 1950	14 Geo. 6. c. 26.
Maintenance Orders Act, 1950... ..	14 Geo. 6. c. 37.
Dangerous Drugs Act, 1951	14 & 15 Geo. 6. c. 48.
Guardianship and Maintenance of Infants Act, 1951	14 & 15 Geo. 6. c. 56.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 and 1 Eliz. 2. c. 55.
Sexual Offences Act, 1956	4 & 5 Eliz. 2. c. 69.
Affiliation Proceedings Act, 1957	5 & 6 Eliz. 2. c. 55.
Maintenance Orders Act, 1958... ..	6 & 7 Eliz. 2. c. 39.
Adoption Act, 1958	7 & 8 Eliz. 2. c. 5.
Mental Health Act, 1959	7 & 8 Eliz. 2. c. 72.
Indecency with Children Act, 1960	8 & 9 Eliz. 2. c. 33.

CHAPTER 49

An Act to establish a Public Health Laboratory Service Board for the exercise of functions with respect to the administration of the bacteriological service provided by the Minister of Health under section seventeen of the National Health Service Act, 1946.

[29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

The Public
Health
Laboratory
Service
Board.

1.—(1) For the purpose of exercising such functions with respect to the administration of the public health laboratory service as the Minister may determine there shall be constituted, in accordance with the Schedule to this Act, a board by the name of the Public Health Laboratory Service Board (in this Act referred to as the Board).

(2) The Board may appoint such officers and servants, on such terms as to remuneration and conditions of service, as the Board may, with the approval of the Minister, determine.

(3) The Board may pay to its members and to the members of any committee appointed by the Board such travelling and other allowances, including compensation for loss of remunerative time, as the Board may, with the approval of the Minister and the Treasury, determine.